Topic: Reproductive Rights and Abortion

Introduction:

First we want to make clear the structure of this case study. Here we will give a quick introduction about steps we are going to follow in this examination. There will be 3 major sections (A,B,C) and an ending summary:

- A. We will explain the **core arguments** between Democrats and Republicans. We will present the major positions associated with both parties.
- B. We **separate the individual questions** hidden inside the political package.
- C. We look into the case **from multiple perspectives**.
  In Section C, we will try from the following 7 perspectives to examine this topic.
  1. Where do the two sides already share common ground?
  2. Where do they genuinely disagree?
  3. Which concerns raised by each side are reasonable?
  4. Where might either side be overreaching?
  5. What important considerations have both sides overlooked?
  6. What values, facts, or assumptions are producing the disagreement?
  7. Where should the proper boundaries be drawn based upon our much broad and shared value?
- At last, we will **summarize** the discussion.

A. We will explain the core arguments between Democrats and Republicans. We will present the major positions associated with both parties.

Democratic Side's View: Core Principles, Policy Goals, and Extra

The Democratic Party frames reproductive freedom as basic health care, asserting that decisions about abortion, contraception, and fertility treatments belong between a patient and their doctor, free from government interference. [1, 2]

Core Principles

- **Health Care Framing:** Democrats define abortion and family planning as essential medical procedures rather than political or moral issues, arguing that denying these services jeopardizes patients' health, safety, and lives. [1, 2]
- **Bodily Autonomy:** The platform maintains that individuals have a fundamental right to control their own bodies, reproductive lives, and future planning. [1]

- **Privacy and Medical Confidentiality:** Decisions regarding pregnancy management are viewed as deeply personal matters protected by medical privacy, excluding politicians and criminal law. [1]

Key Policy Goals

- **Codifying *Roe v. Wade*:** Passing federal legislation to restore the nationwide right to abortion protections previously established by *Roe v. Wade*. [1, 2]
- **Protecting Fertility Treatments:** Safeguarding and expanding access to assisted reproductive technologies like in vitro fertilization (IVF). [1, 2]
- **Strengthening Contraception Access:** Ensuring affordable, widespread access to birth control, including mandates through programs like the **Affordable Care Act**. [1, 2, 3]
- **Medication Abortion:** Defending and protecting access to FDA-approved abortion medications such as mifepristone. [1, 2]
- **Repealing the Hyde Amendment:** Working to eliminate restrictions that block federal funds (like Medicaid) from covering abortion care for low-income individuals. [1]

Broader Equity and Maternal Health

- **Addressing Maternal Mortality:** Tackling racial and gender disparities in health outcomes, particularly the crisis affecting Black mothers and infants. [1]
- **Provider Protection:** Defending health care providers from criminalization, harassment, and license revocation for offering comprehensive reproductive care across state lines. [1, 2, 3]

Republic Side's View: Principles and Internal Debates

The Republican Party's stance on the **sanctity of life** and **state authority** represents an evolving intersection of social conservatism, constitutional interpretation, and political strategy. Since the landmark reversal of *Roe v. Wade* by the Supreme Court in 2022, the GOP's platform has increasingly balanced its traditional anti-abortion principles with a focus on federalism and state-level governance. [1, 2]

The core tenets of this platform break down into two main pillars:

1. The Sanctity of Life (Pro-Life Philosophy)

The foundational principle of the Republican "pro-life" platform is the belief that human life begins at conception and possesses inherent moral worth. [1, 2]

- **Fourteenth Amendment Protections:** The GOP platform asserts that the **Fourteenth Amendment** guarantees that no person can be denied life or liberty without due process. Many factions within the party argue that this constitutional protection should explicitly extend to unborn children. [1, 2]
- **Policy Goals:** Republicans broadly advocate for protecting the unborn by restricting late-term abortions while supporting policies that advance prenatal care, birth control, and access to treatments like in vitro fertilization (IVF). [1]

2. State Authority and Federalism

Following the 2022 *Dobbs v. Jackson Women's Health Organization* decision, the Republican Party's dominant policy approach has shifted to emphasizing **states' rights** under the **Tenth Amendment**. [1, 2]

- **Returning Power to the Voters:** The official party stance aligns closely with leaving abortion regulations to individual state legislatures and the direct vote of the people. This framework allows each state to set its own parameters based on local constituent values, which has resulted in a wide spectrum of laws—ranging from near-total bans in some conservative states to more permissive rules in others. [1, 2, 3, 4]
- **Avoidance of a Federal Ban:** The national party platform intentionally resists codifying a one-size-fits-all nationwide legislative ban, characterizing the issue as an authority properly held by the states rather than the federal government. [1, 2]

Internal Party Debates and Ideological Tensions

While the official party platform emphasizes state control, the Republican coalition experiences ongoing internal disagreement over how to balance these two principles: [1, 2]

- **The Pragmatic/State-Centric Faction:** Proponents of this view, which mirrors the national platform, argue that a localized state-by-state approach respects constitutional federalism and represents a politically viable consensus necessary for winning national elections. [1, 2]
- **The Federal/Absolutist Faction:** Social and religious conservatives often argue that if an unborn fetus has a fundamental right to life, that right should be protected nationally. Some legislators continue to advocate for federal interventions, such as pushing pledges to restrict mail-order abortion medications or implementing baseline national restrictions. [1, 2, 3, 4]

B. separate the individual questions hidden inside the political package.

The national parties contain considerable internal diversity, but their central disagreements can be summarized as follows:

Fundamental question	Typical Democratic position	Typical Republican position
Whose rights are primarily at stake?	The pregnant person’s liberty, bodily autonomy, health, and equality are primary.	The fetus is an unborn human life whose interests also deserve legal protection.
When should fetal life receive legal protection?	Protection may increase as pregnancy develops, particularly around viability, but it ordinarily should not override the patient’s rights early in pregnancy.	Human life deserves substantial protection from conception or an early stage of pregnancy. Republicans disagree internally about the precise legal starting point.
Who should make the decision?	Primarily the pregnant person, in consultation with medical professionals—not politicians.	Government may restrict abortion because protecting developing human life is a legitimate public responsibility.
Should abortion rights be nationally protected?	Generally yes. Democrats support federal legislation restoring nationwide protections similar to—or sometimes broader than—those under *Roe v. Wade*.	The 2024 Republican platform emphasized allowing states and voters to determine abortion policy, although some Republicans continue to advocate federal restrictions.

Fundamental question	Typical Democratic position	Typical Republican position
Where should the legal boundary be?	Usually broad access before viability, with later exceptions when the patient's life or health is endangered or serious fetal conditions exist.	Usually an earlier gestational limit, with considerable disagreement over whether and which exceptions should apply.
How should uncertainty be handled?	When moral or medical circumstances are uncertain, the individual—not the state—should generally decide.	When the fetus may possess a right to life, uncertainty justifies greater legal protection rather than leaving the decision entirely private.
What counts as freedom?	Freedom means the ability to decide whether and when to continue a pregnancy.	Freedom does not normally include the authority to end another developing human life.
What is the proper role of physicians?	Physicians need sufficient discretion to respond to complicated pregnancies without fear of prosecution.	Medical judgment is important, but it should operate within laws protecting fetal life and preventing elective abortions after the legal limit.

It concerns how two competing claims should be balanced: **the pregnant person's bodily autonomy** and **the developing fetus's moral and legal status**.

C. Look into the case from multiple perspectives:

1. Where do the two sides already share common ground?

Both support: protect pregnancies after viability, IVF, properly support for Children, families and adoption. And some exceptional emergency cases.

Both sides acknowledge that **14th amendment**. But in the abortion debate, the Constitution didn't explicitly specify the personhood of a fetus, this left the space for ambiguous interpretations.

In the abortion debate, both parties invoke the Fourteenth Amendment—but they focus on different people, different clauses, and different meanings of "liberty."

The central disagreement is:

> **Does the Fourteenth Amendment protect a pregnant person's freedom to choose abortion, protect the unborn child as a constitutional person, or leave that balance to elected governments?**

What the Fourteenth Amendment says

Adopted in 1868, Section 1 contains four major protections:

- **Citizenship Clause:** establishes national and state citizenship.
- **Privileges or Immunities Clause:** prevents states from abridging certain rights of U.S. citizens.
- **Due Process Clause:** states may not deprive "any person of life, liberty, or property, without due process of law."
- **Equal Protection Clause:** states may not deny any person "the equal protection of the laws."

The abortion dispute primarily involves **due process**, **liberty**, **equal protection**, and the meaning of **"person."**

Democratic interpretation

1. "Liberty" includes reproductive decision-making

The traditional Democratic legal argument follows *Roe v. Wade* and *Planned Parenthood v. Casey*:

> **Fourteenth Amendment liberty → privacy and bodily autonomy → protection for reproductive decisions**

Under this interpretation, "liberty" protects certain intimate decisions from excessive government control, even when those rights are not explicitly listed in the Constitution.

Related unenumerated rights have included decisions involving:

- Marriage.
- Contraception.
- Family relationships.
- Child-rearing.
- Sexual intimacy.
- Before *Dobbs*, abortion.

Democrats therefore generally argue that compelling someone to continue a pregnancy substantially interferes with bodily autonomy, health, family life and control over one's future.

2. Equal protection supports reproductive equality

Democrats also make a political and constitutional-equality argument:

- Pregnancy uniquely affects women.
- Control over reproduction affects education, employment and economic participation.
- Restrictive laws can have particularly severe effects on poorer women.
- Therefore, reproductive freedom is connected to equal citizenship.

This is an influential Democratic value argument, although the Supreme Court has not held that every abortion restriction is unconstitutional sex discrimination.

3. The fetus is not presently a Fourteenth Amendment “person”

The mainstream Democratic position does not deny that prenatal life has biological or moral value. Instead, it rejects the proposition that an embryo or fetus has the same constitutional personhood as someone who has been born.

Under this position:

- Government may have an interest in prenatal life.
- That interest may grow stronger during pregnancy.
- It does not automatically override the established constitutional rights of the pregnant person from fertilization onward.

4. Current Democratic objective

Because *Dobbs* held that the Fourteenth Amendment does not presently protect abortion, Democrats now generally seek:

- Federal legislation restoring protections similar to *Roe*.
- State constitutional protections.
- Protection for contraception, medication abortion and interstate travel.
- Judicial interpretations recognizing reproductive liberty or equality.

The 2024 Democratic platform described this primarily as restoring **reproductive freedom**, rather than declaring that the current Supreme Court already recognizes a Fourteenth Amendment abortion right.

Republican interpretation

1. The Amendment does not contain an abortion right

The prevailing conservative legal argument is that the Fourteenth Amendment's word "liberty" should not be expanded to create a constitutional right unless that right is deeply rooted in American history and tradition.

The reasoning is:

Abortion is not expressly mentioned+no deeply rooted historical right → no Fourteenth Amendment abortion right

This became the Supreme Court majority's position in *Dobbs*. The Court held that the Fourteenth Amendment does not protect a right to abortion and returned regulatory authority to voters and elected representatives.

2. States may protect prenatal life

Republicans generally argue that prenatal life is a legitimate object of legal protection. Once *Roe* and *Casey* were overruled, states could balance maternal liberty and prenatal life through legislation.

Under the post-*Dobbs* approach, abortion laws ordinarily receive deferential constitutional review if they are rationally related to a legitimate governmental interest, such as protecting prenatal life or maternal health.

3. Some Republicans believe unborn children are constitutional persons

A stronger Republican or "fetal personhood" position argues:

Unborn child is a person → Fourteenth Amendment protects its life → government must protect it from abortion

If the word "person" includes unborn children, abortion would not merely be something states *may* prohibit. The Equal Protection and Due Process Clauses might require governments to protect unborn life.

This view could also raise difficult questions involving:

- IVF embryos.

- Disposal of embryos.
- Pregnancy loss.
- Ectopic pregnancy treatment.
- Criminal and civil liability.
- Whether every embryo must receive protection equivalent to a born person.

Not all Republicans embrace this full constitutional-personhood position.

4. The current national Republican platform is deliberately ambiguous

The 2024 Republican platform says:

> "No person can be denied Life or Liberty without Due Process," and states are free to pass laws protecting those rights.

It then emphasizes that authority has been returned to the states and voters, opposes "late-term abortion," and supports prenatal care, birth control and IVF.

Significantly, the platform does **not explicitly declare that every fetus is a Fourteenth Amendment person**, nor does it demand a federal abortion ban. This reflects internal Republican disagreement between:

- Constitutional-personhood advocates.
- National-ban advocates.
- Supporters of gestational limits.
- Republicans who want each state to decide.
- More moderate Republicans who support some pre-viability access.

Comparison

Fourteenth Amendment question	Typical Democratic position	Typical Republican position
What does "liberty" protect?	Bodily autonomy, privacy and reproductive decision-making	Historically recognized rights, not a judicially created abortion right
Who is the principal constitutional	The pregnant person	The pregnant person, but also prenatal life deserving

Fourteenth Amendment question	Typical Democratic position	Typical Republican position
rights-holder?		legal protection
Is a fetus a constitutional “person”?	Generally no, although it has developing moral value	Some say yes from conception; others avoid resolving personhood
What does equal protection require?	Reproductive control is related to women’s equal citizenship	Law should protect unborn life equally if it is recognized as human personhood
Who should set abortion policy?	A national rights floor should prevent states from eliminating access	Primarily state voters and legislatures under the current national platform
View of *Roe* and *Casey*	Legitimate protection of reproductive liberty	Unjustified expansion of substantive due process
View of *Dobbs*	Removal of an established liberty and threat to equality	Correction of constitutional overreach and restoration of democratic authority

What *Dobbs* did—and did not decide

Dobbs decided:

- The Constitution does not currently confer a right to abortion.
- *Roe* and *Casey* were overruled.
- Governments may regulate or prohibit abortion, subject to other applicable law.

But *Dobbs* did **not** decide:

- That an embryo or fetus is a Fourteenth Amendment person.
- That the Constitution requires abortion to be prohibited.
- That every state must adopt the same policy.
- Exactly when prenatal legal rights begin.

Therefore, the current constitutional position lies between the strongest party claims:

No federal abortion right under the present Dobbs doctrineNo Supreme Court ruling establishing fetal Fourteenth Amendment personhoodPolicy authority largely returned to elected governments

The deepest partisan disagreement is thus not whether the Fourteenth Amendment protects life and liberty—both sides agree that it does. It is **whose life, whose liberty, and from what point in human development constitutional personhood begins**.

2. Where do they genuinely disagree?

Fundamental question	Typical Democratic position	Typical Republican position	Democratic Side	Republican Side
1. Whose rights are primarily at stake?	The pregnant person's liberty, bodily autonomy, health, and equality are primary.	The fetus is an unborn human life whose interests also deserve legal protection.	Focus on pregnant person's right, liberty, no to mention **parental responsibility**, **fetus's moral and legal status**	Focus on Fetus moral and legal status, hold a spectrum of views, the **extreme small subgroup ignore the pregnant persons' free will**.
2. When should fetal life receive legal protection?	Protection may increase as pregnancy develops, particularly around viability, but it ordinarily should not override the patient's rights early in pregnancy.	Human life deserves substantial protection from conception or an early stage of pregnancy. Republicans disagree internally about the precise legal starting point.	For a few reasons, very early abortion bring less harm to various parties. The point view hold a reasonable part.	Internally holds a whole spectrum of views: from since conception to initial a few months. Policy wise, portion of Republicans and Democrats share similar idea. There might be some difference in the detail: exactly how many days since conception.
3. Who should make the decision?	Primarily the pregnant person, in consultation with medical professionals—not politicians.	Government may restrict abortion because protecting developing human life is a legitimate public responsibility.	***Sophism***: the precondition for this argument is it does not violate our established law.	The debate is about if we should set law to protect fetus' legal status. It's valid that Republicans raise its opinion.
4. Should abortion rights be nationally protected?	Generally yes. Democrats support federal legislation restoring nationwide protections similar to—or sometimes broader than—those under *Roe v. Wade*.	The 2024 Republican platform emphasized allowing states and voters to determine abortion policy, although some Republicans continue to	Controversial does not mean there is no right answer. It's OK to have a national wide policy, if the policy is appropriate. However there are	Republicans try to avoid the confrontation at the federal level, let each state to decide, try to avoid trigger the middle ground under the election

		advocate federal restrictions.	significant disagreement about Roe v. Wade, not to mention an even broader version.	pressure.
5. Where should the legal boundary be?	Usually broad access before viability, with later exceptions when the patient's life or health is endangered or serious fetal conditions exist.	Usually an earlier gestational limit, with considerable disagreement over whether and which exceptions should apply.	The major difference between both are the detailed decision time, and how to treat the exceptional cases, which could be a loophole.	The middle ground within Republicans accept abortion at earlier gestational period.
6. How should uncertainty be handled?	When moral or medical circumstances are uncertain, the individual —not the state—should generally decide.	When the fetus may possess a right to life, uncertainty justifies greater legal protection rather than leaving the decision entirely private.	Again ***Sophism***: If there is a law govern this situation, the exceptions to this law should be legally determined, otherwise it could be a loophole.	Republicans emphasize to legal investigation in the exceptional case to protect the intended "Law"'s public trust and credibility, to avoid loopholes.
7. What counts as freedom?	Freedom means the ability to decide whether and when to continue a pregnancy.	Freedom does not normally include the authority to end another developing human life.	Emphasize the free space of action of a person	Emphasize the boundary of a person's free space of action.
8. What is the proper role of physicians?	Physicians need sufficient discretion to respond to complicated pregnancies without fear of prosecution.	Medical judgment is important, but it should operate within laws protecting fetal life and preventing elective abortions after the legal limit.	Again ***Sophism***: If it's a legal case, the medical practices should be under the law.	It's reasonable that our actions, including medical judgments, should comply with our established laws.

Both sides' focal points are drastically different. So this argument is the balance between **the pregnant person's bodily autonomy** and **the developing fetus's moral and legal status**. There are more fundamental reasons for this argument. However policy wise, we are not that far apart from each other.

Actually the majority from both sides share similar ideas, but may differs at the detail boundaries: "how many days since

conception that the fetus should be legally protected?" Another policy difference is about how to determine the exceptional cases. By common practice, the identification of exceptional cases should be under the same law, otherwise this law is incomplete, with loopholes. So the only core policy argument is: "**how many days since conception that the fetus should be legally protected?**"

The main differential points from both sides (could be subgroups):

1. Fetus's moral and legal status
2. Treat fetus as a removable part of pregnant person's body, vs treat fetus as divine entity with sanctity.
3. pregnant person's free will
4. related adults' parental responsibilities
5. the emphasis on boundaries of executing free will
6. One side talk about "Protect", the other side talk about "Restrict"
7. Focus on core policy/legislation debate or focus on favorable policies that are subsidiary to the core policy

And directly related to the resulting policies:

8. the exact cutoff time that the fetus should be legally protected
9. how to identify the exceptional cases

3. Which concerns raised by each side are reasonable? (empty indicates: downplay or ignore, X indicates irrelevant or blurred area with no consensus)

Concerns or debate points	Democratic Side	Republic Side
1. Fetus's moral and legal status		Valid
2. Treat fetus as a removable part of pregnant person's body, vs treat fetus as divine entity with sanctity.		Valid
3. pregnant person's free will	Valid	
4. related adults' parental responsibilities		Valid
5. the emphasis of boundaries of executing free will		Valid
6. One side talk about "Protect", the other side talk about "Restrict"	X	X
7. Focus on core policy/legislation debate or focus on favorable loopholes		Valid
8. the exact cutoff time that the fetus should	X	X

be legally protected		
9. how to identify the exceptional cases		Valid

4. Where might either side be overreaching?

Concerns or debate points	Democratic Side	Republic Side
1. Fetus's moral and legal status	Overreach	Valid
2. Treat fetus as a removable part of pregnant person's body, vs treat fetus as divine entity with sanctity.	Overreach	Valid
3. pregnant person's free will	Valid	Small subgroup ignore
4. related adults' parental responsibilities	Ignore	Valid
5. the emphasis of boundaries of executing free will	Ignore	Valid
6. One side talk about "Protect", the other side talk about "Restrict"	X	X
7. Focus on core policy/legislation debate or focus on favorable loopholes	Deviate	Valid
8. the exact cutoff time that the fetus should be legally protected	X	X
9. how to identify the exceptional cases	Overreach	Valid

5. What important considerations have both sides overlooked?

5.1 Expand our perspective within physical domain:

Now let's expand our perspective to include the partner. If both sides agree with the decision, then there is no issue. Otherwise:

Scenario 1: the pregnant-person intends to abort, but the partner disagrees, considering the effort and sacrifice from the pregnant-person's side, the pregnant-person's opinion probably deserves weighting more.

Scenario 2: when the unexpected pregnancy happens. If the pregnant person intend to stay while the partner want to abort, the partner's opinion may deserve serious consideration if the abortion does not bring too much harm to the pregnant-person.

5.2 Expanded our perspective beyond the physical domain:

We used to think in the physical realm for a long time. Let's expand our perspective a little. We are all divine beings, our souls manifest our bodies to experience this physical reality. The incoming soul typically begin to reside in the fetus around 1 to 2 months.

The fact that a soul chose to come usually reflect a divine connection with the pregnant-person or the family beyond space and time. After the soul begins to reside in the fetus, an abortion could unduly hurt the soul, and may bring karmic consequences to the related persons. From the broader perspective, we adults and fetus with soul are equal divine beings, should be equally respected.

Before, our policy debate is mostly about the relationship between pregnant-person and the fetus. Now we expand our view to include partners, and most importantly, the Divine. Pregnant-person, partner, the fetus are all divine beings, our physical bodies are manifested by our divine, just at the different stage of manifestation. In essence, we adult and fetus with soul residing in it are exactly the same divine identities.

Taking above what have been missing from both sides, it sounds fair and reasonable to choose the policy decision time before the moment the soul is coming and that also give the pregnant-person a space to make an informed decision.

Let's take a look the following fetus development timetable.

Proposed legal boundary	Medical gestational age	Approximate time since fertilization	Development Status
Fertilization	About week 2	Day 0	A genetically distinct developing organism begins
Implantation	About weeks 3–4	About 1–2 weeks	The embryo attaches to the uterus and an established pregnancy begins
Detectable cardiac activity	Around week 6	About 4 weeks	A recognizable sign of developing life. **The incoming soul may enter soon after.**
End of first trimester	Around weeks 12–13	About 10–11 weeks	The soul become coupled with the fetus and keep energize the development of the fetus.

The time "**Week 6 at Medical gestational age**" corresponds to "**about 4 weeks since fertilization**". At this moment, the incoming soul has not entered the fetus yet. And the pregnant-person typically have plenty evidence of possible pregnancy. This is the time that the person could obtain the medical result and make a decision, while an abortion won't hurt the incoming soul if an abortion is chosen.

It seems the decision time for abortion around "**Week 6 at Medical gestational age**" could be the informed reasonable choice. The pregnant-person's right that Democrats advocate for is respected and practically actionable; and the sanctity of fetus' life that Republicans advocate for is also fully protected. A significant deviation from this time could cause overreaching

into either side. Actually Florida, Georgia, Iowa and South Carolina's policies are already pretty close to this "Week 6" decision time, great job done!!!

6. What values, facts, or assumptions are producing the disagreement?

6.1 Goals:

Goals	Protect that the pregnant person can legally make abortion decision personally. And try to restore to the Roe v. Wade or even broader scope, and with the exclusion the exceptional cases. Also propose legal item to facilitate the physicians to provide medical support for abortion.	Protect the fetus as an unborn human life. Advocate for legal restriction of abortion, and the exceptional cases should be under the law as well. However under the election pressure, Republicans made the compromise to let each state to make its own decision.

6.2 Values & Beliefs:

Shared value	Democratic Side	Republican Side
Life	Protect the patient's life, health and ability to build a viable life; fetal protection increases with development	Protect unborn human life from an early stage, frequently beginning at conception, however with a spectrum of opinions internally
Liberty	Freedom to decide whether to continue a pregnancy	Freedom does not include ending another protect-able human life
Dignity	Respect the pregnant person as an autonomous decision-maker	Recognize the inherent dignity of unborn life
Equality	Reproductive control is necessary for women's social and economic equality	Unborn human beings deserve equal legal protection
Compassion	Consider difficult medical, financial and family circumstances	Protect vulnerable unborn children and support mothers
Responsibility	Make a responsible decision based on one's capacity and circumstances	Accept responsibility for creating dependent human life
Pluralism	Government should not impose one disputed moral belief	Some moral truths—especially protection from killing—must apply generally
Medical judgment	Patient and physician should retain broad discretion	Physicians should operate within legal boundaries protecting fetal life

Shared value	Democratic Side	Republican Side
Democracy	A national right protects individuals from restrictive state majorities	State voters and legislatures should determine policy
Religious liberty	Individuals should not be governed by another group's theology	Clinicians, institutions and taxpayers should not be compelled to participate in abortion

6.3 Circumstances

Circumstances	Advocate the exceptional circumstances justify leave the decision to the private.	Advocate the exceptional circumstances may deserve exceptional treatment but are still under the law.

6.4 Incentives

Incentives	Advocate use federal fund to cover abortion care for low-income individuals	Object to using public tax money to support abortion.

7. Where should the proper boundaries be drawn based upon our much broad and shared value?

A fairer conclusion is:

Democrats give greater initial weight to the **pregnant person's autonomy, health and moral agency**.

Republicans give greater initial weight to the **developing human life's moral status** and **society's responsibility to protect it**.

The conflict becomes strongest when each side treats only its preferred rights-holder as morally visible. A constructive framework must recognize both claims and then openly determine how their relative legal weight changes across pregnancy and under exceptional circumstances.

Referring our discussion in section 5, it seems the decision time for abortion around "**Week 6 at Medical gestational age**" could be the informed reasonable choice.

Before this time, the pregnant-person's right that Democrats advocate for is respected and practically actionable; and an abortion before this time won't cause external harm, won't bring potentially karmic consequences.

After this time, the fetus life, the equally divine beings as us, is legally protected. The sanctity of fetus' life that Republicans advocate for is also fully protected.

This choice of abortion deadline practically respect the pregnant person's free will, also fully protect the fetus' life right.

Acknowledging that the real world situation could be complex in some rare cases, the policy should show the considerate and humane side to give the exceptional cases alternative choices. However the exceptional cases should be identified and regulated under the law, otherwise it could be a source of loophole, which could make our legal system lose credibility.

Summary:

During this examination, we didn't intend to approve or disapprove any party. Instead, we tried to objectively analyze the question as clearly as we can. As I mentioned that we are embodiment of love as a collective. Majority of both groups are truly considerate, reasonable and loving humans. There are very valid concerns raised by both sides.

However because of pressure of group identity, pressure of election, pressure from various interest groups, pressure from media, the whole social environment tends to bring division by emphasizing the difference and contrast instead of dominant common ground. Division annihilates our energy in vain; constructive dialogue and proactively searching for the best solution bring us to reach our common ground and respect our difference.

Through this deep dive, we identified our common agreements. Instead of arguing for the difference endlessly, we tried best to expand our views and looked through multiple critical perspectives. This sincere endeavor to pursue the best solution led us to reach better solutions.

Through this honest discovery process, we reached a conclusion that we believe the best solution from our expanded view, however just our current view. There might be even better solutions for us to find out. I believe this attitude of challenging self, expanding self, objective analysis, honest and earnest exploration are essential in our journey toward an ever better solution.

In one hand, we tried to objectively produce a specific solution for a specific problem. On the other hand, it is equally important that we demonstrated how to challenge our limits and reach higher.

We release ourselves from our group identity;
we release ourselves from the self-imposed information cage;
we overcome the entrenched points of view;
we expand our perspectives;
we go beyond our current political paradigm;
then we reach the space with unabridged potentials by transforming ourselves into an informed, objective and independent critical thinkers.

Asking key questions; connecting with related groups; deeply understanding where they come from; uncovering the underlying common grounds and the divergences; maximizing our common interests and properly managing our boundaries; we keep diving deeper and thinking further, we can do it better and better.

The Reproductive Rights and Abortion debate has been going on well beyond the political debates in recent decades. Actually it has been going on well over a century since we had the medical support for abortion. It was initially a moral and medical debates, not associated with any political party. However the debates eventually evolved into one of the most fierce political debates between both parties.

Here is a very concise history about the development and shift of this debate.

Time and Events	**Brief Explanation**
1. Colonial period through early 1800s	Early American law inherited English common-law “quickening”, the point when a pregnant women first felt fetal movement, usually around 16~20 weeks; before which, An abortion was generally not treated as a serious criminal offense; after which, an abortion was more likely to be prohibited or punished.
2. 19 century decriminalization	Between 1840s and early 1900s, medical knowledge increasingly treated fertilization rather than quickening as the beginning of embryonic development. By the early 1900s, abortion was generally prohibited except at the condition of women’s life risk.
3. 1960s: reform was initially bipartisan	With the advancement of medical procedures and other social conditions, States began to lean toward liberalizing their abortion laws. However the coalitions of debates does not resemble today’s party’s coalitions status at all. Some moderate and liberal Republicans supported liberalizing reform while some conservative Democrats opposed it.
4. 1973 Roe v. Wade transformed it into a national constitutional issue	It divided pregnancy approximately into trimesters: Abortion decision at early pregnancy was largely left to the patient and physician. Later, states could prohibit abortion with some exceptions. It produced tow major political effects: 1. It removed much abortion policy from state legislative bargaining. 2. Both parties began to focus on the Supreme Court, constitutional law and presidential judicial appointments on this topic.
5. 1970s: the parties began sorting	In 1976, Democratic Congressman Henry Hyde proposed the Hyde Amendment, restricting federal Medicaid funding for most abortions. The debate now included two separate questions: 1. Should abortion be legally permitted? 2. Even if permitted, should taxpayers be required to fund it? The 1976 Republican platform supported efforts to adopt a constitutional amendment protecting unborn life with internal disagreement. This was an important turning point: opposition to Roe was becoming an official Republican commitment. Many Democratic officeholders and voters remained personally or politically opposed to abortion, while the Democratic Party increasingly incorporated: • Feminist organizations.

- Civil-liberties advocates.
- Reproductive-health organizations.
- Secular voters.
- Professional women.
- Supporters of constitutional privacy rights.

6. The 1980 election accelerated the political realignment

The Republican Party increasingly supported:

- Reversal of Roe.
- A constitutional “Human Life Amendment.”
- Restrictions on federal funding.
- Appointment of judges who interpreted abortion rights narrowly.
- Conscience protections for abortion opponents.

The Democratic Party increasingly presented abortion as part of:

- Women’s equality.
- Privacy.
- Personal liberty.
- Health care.
- Freedom from state-enforced religious morality.

By 1980, the outlines of the modern partisan disagreement were clearly visible, although substantial internal dissent remained.

7. The 1980s and 1990s: party positions became institutionalized

The debate has expanded the outright prohibition to include multiple related policy arguments.

Planned Parenthood v. Casey in 1992 replaced the trimester framework with an undue-burden standard, which brought unstable compromise, leading to numerous litigation. Eventually it escalated to the Supreme Court, attracted a lot of public and political attention.

The Democratic platform supported contraception, reproductive counseling and “the right to a safe, legal abortion.”

The Republican platform supported a constitutional human-life amendment and applying Fourteenth Amendment protections to unborn children.

By this point, the national parties had adopted substantially opposing institutional positions.

8. The Clinton and Bush years: competing

Democratic framing under Bill Clinton

That language attempted to combine:

compromises

- Legal access.
- Recognition that abortion carries moral weight.
- Prevention of unintended pregnancy.
- Reduction of abortion through education and contraception. Democratic language placed progressively greater emphasis on access, reproductive justice and freedom, and less emphasis on "rare," partly because abortion-rights advocates believed the word stigmatized patients.

Republican policy under George W. Bush
Republicans increasingly emphasized:

- Restrictions on particular later abortion procedures.
- Parental involvement.
- Unborn-victim laws.
- Funding restrictions.
- Conscience protections.
- Judicial appointments.

Congress enacted the Partial-Birth Abortion Ban Act in 2003. The Supreme Court upheld it in Gonzales v. Carhart in 2007.
This showed that even under Roe and Casey, governments could prohibit a specified abortion method if the law was drafted to survive constitutional review.

9. 2010s: state legislation and judicial appointments took center stage

After Republicans gained control of many state legislatures, states adopted numerous abortion regulations:

- Mandatory waiting periods.
- Ultrasound requirements.
- Hospital-admitting-privilege requirements.
- Facility requirements for clinics.
- Medication-abortion restrictions.
- Gestational limits.
- Fetal-cardiac-activity laws.
- "Trigger laws" designed to take effect if Roe were overturned.

Democrats argued that many of these regulations were medically unnecessary measures designed to make abortion inaccessible without banning it explicitly.
Republicans argued that the regulations protected:

- Maternal health.
- Informed consent.

- Fetal life.
- Medical standards.
- Parental rights.

Donald Trump and the Supreme Court

After 2016, Trump appointed 3 conservative Supreme judge, reaching six-justice conservative majority.

10. Dobbs ended the federal constitutional right

In 2022, the Supreme Court decided Dobbs v. Jackson Women's Health Organization. The case concerned Mississippi's prohibition of most abortions after 15 weeks.

The majority held that:

- The Constitution does not confer a right to abortion.
- Roe and Casey should be overruled.
- Authority to regulate abortion should return to voters and elected representatives.

The immediate result was

- This entailed a whole spectrum of state regulation: from near-total bans to protected abortion.
- Patients increasingly traveled across state lines.
- Medication abortion and interstate legal conflicts became more important.

11. The parties' change of objectives after Dobbs

Democratic development

After Dobbs, Democrats moved from defending an existing Supreme Court precedent to seeking new statutory or constitutional protection.

Their principal objectives became:

- Restoring nationwide protections similar to Roe.
- Protecting medication abortion.
- Protecting interstate travel.
- Preserving emergency medical treatment.
- Protecting contraception and IVF.
- Preventing criminal liability for patients and clinicians.
- Removing or limiting federal funding restrictions.

The 2024 Democratic platform described abortion primarily through reproductive freedom, medical care and national protection.

Republican development

The achievement of overturning Roe exposed significant internal Republican disagreements that had previously been concealed by the shared objective of overturning it.
Republicans now divide over:

- Protection beginning at fertilization versus later gestational limits.
- Total bans versus six-, twelve- or fifteen-week restrictions.
- Rape and incest exceptions.
- Health versus life-only exceptions.
- State authority versus federal legislation.
- Criminal penalties for providers, patients or both.
- How fetal-personhood principles affect IVF.
- Whether medication abortion should be federally restricted.

The 2024 national Republican platform was less specific than earlier platforms. It stated that the Fourteenth Amendment protects life and liberty, emphasized state lawmaking, opposed “late-term abortion,” and supported prenatal care, birth control and IVF.
This reflected a strategic move away from an explicit national gestational ban while preserving the party’s pro-life orientation.

Why the divide became increasingly intense:
Several mechanisms reinforced one another:

- Ideological sorting
  Liberal Republicans and conservative Democrats gradually disappeared or switched parties. The parties became more internally homogeneous.
- Religious realignment
  Religiously conservative voters increasingly joined the Republican coalition, while secular and religiously unaffiliated voters increasingly joined the Democratic coalition.
- Interest-group influence
  Organizations on both sides developed:
  - Candidate endorsements.
  - Voter scorecards.
  - Campaign funding.
  - Judicial-selection networks.
  - Litigation strategies.
  - Primary-election challenges.

- Judicial politics
  Because Roe constitutionalized abortion, every Supreme Court appointment potentially affected national policy. Abortion consequently became inseparable from presidential and Senate elections.
- Primary-election incentives
  Highly engaged partisan voters participate disproportionately in primaries. Candidates can therefore face more pressure from uncompromising activists than from the broader electorate.
- Competing language
  Each party developed a moral vocabulary that highlighted one side of the conflict:
  - "Pro-choice," "reproductive freedom," "health care" emphasize the pregnant person.
  - "Pro-life," "unborn child," "sanctity of life" emphasize the fetus.

  These terms are not neutral descriptions. Each directs attention toward one rights-holder and can make the competing concern less visible.

The historical progression can be summarized as follows:

State-regulated moral and medical question
→Bipartisan reform controversy
→National constitutional right under Roe
→Religious and feminist political mobilization
→Party sorting and judicial conflict
→Overturning of Roe under Dobbs
→State-by-state conflict and new party divisions

The most important historical insight for the analysis is this:

The current partisan divide was not inevitable. It developed through constitutional decisions, coalition-building, religious and feminist mobilization, judicial strategy, interest-group pressure and gradual ideological sorting.

At its foundation, however, the persistent moral conflict remains the same: **when developing life acquires rights, how those rights should be balanced against bodily autonomy, and which institution should have authority to draw the legal boundary**.

This debate as well as numerous other debates has been utilized to define and enhance the group identity by at least one political party or both parties.

Occupied by our work and daily lives, many voters don't bother to spend decent amount of effort to seriously study these political agenda. They tend to use less energy consuming way to fulfill their voting duties when approaching the election day. As a result, they are more likely to be influenced by slogans or group identity to make a voting decision.

However we don’t have to limit ourselves to the given group identities that are overly simplified and typically biased. We don’t have to surrender our power to this bi-polar political machinery, which is more conducive to political fight instead of reaching durable solutions.

We can choose to be an informed, objective and independent critical thinkers. This is how we best contribute our talents to our society. Once we release our self-imposed limits, we together could come up with great ideas, face challenges and reach better solutions.

Looking into the mirror, we can make a change that empowers ourselves. Together we reach higher and release our full potential!